

COMP7901 (2025-26)
Legal Protection of Digital Property
Homework #1
Due: 11 pm, 15 March 2026

Read "Guide to Doing Homework Assignments" before working, and ensure that your essay complies with "Policy on Assignments" before submitting. Whenever possible, cite authorities (i.e., section numbers of HK legislation and/or relevant cases) to support your argument. If you rely on cases not mentioned in lectures, you must provide their full citations (eg. [2007] 3 HKC 255). If you need to make any assumptions about the facts, make the most reasonable and the minimal number of assumptions, and state what they are.

Jacky, IT manager of HongKong Insurance (**HKI**), has led a team of in house software engineers to develop an accounting software for the company. During the design stage of the software, Jacky had regularly met with the software engineers to come up with a design document ("**the Document**") for the software. While the Document was written entirely by Jacky, all of the diagrams contained therein were contributed by the software engineers. It was understood that the Document was to be kept confidential and not to be disclosed to anyone outside HKI.

The new software was written entirely by the software engineers. Shortly after the software was installed, Jacky left HKI to join KowLoon Insurance (**KLI**) as the Head of IT and took with him a copy of the Document. Jacky's first project at KLI was to revamp the company's accounting software. To kick-start the project, he had given a seminar to KLI's programming team showing on screen certain crucial passages and diagrams extracted from the Document. He had also printed and given the team hard copies of these passages and diagrams ("**the Copies**"), telling them that they were free to use the Copies in designing a new accounting software for KLI. A few weeks later, the team came up with a specification for the new software containing all the passages and diagrams appearing in the Copies.

- (a) Identify ALL specific copyright works in the facts above. For each copyright work so identified, name the author(s) and copyright owner(s). Explain.
- (b) Does Jacky have any civil liabilities (and if so, who can sue) under the Copyright Ordinance of Hong Kong? Explain.
- (c) Does Jacky have any criminal liabilities under the Copyright Ordinance of Hong Kong? Explain.